

UNITED STATES DISTRICT COURT
DISTRICT OF CONNECTICUT

ANTONIO HERNANDEZ	:	Civil Action No. 22-
	:	
Plaintiff,	:	
	:	
V.	:	
	:	
ANGEL HERRERA and	:	August 11, 2022
PENSKE TRUCK LEASING CO.	:	
Defendants.	:	

COMPLAINT

Count One:

1. At all times material hereto, Plaintiff, Antonio Hernandez, is a citizen of the State of Connecticut.

2. At all times material hereto, Defendant, Angel Herrera, is a citizen of the State of New Jersey.

3. At all times material hereto, Defendant, Penske Truck Leasing Co., incorporated under the laws of Pennsylvania with its principal place of business in Pennsylvania and is licensed to do business in the State of Connecticut.

4. Jurisdiction in this matter is conferred upon this Court pursuant to 28 U.S.C. § 1332(a)(1) because the amount in controversy exceeds the sum or value of \$75,000, exclusive of interest and costs, and is between citizens of different states.

5. On August 17, 2020, Plaintiff was driving a 2015 Jeep Grand Cherokee in the right hand lane of Interstate 95 in Bronx, New York in the Northbound direction.

6. At that time, Defendant Angel Herrera was driving a 2018 Freightliner Box Truck in the middle lane of Interstate 95 in Bronx, New York in the Northbound direction.

7. Upon information and belief, the 2018 Freightliner Box Truck was owned by Penske Truck Leasing, Co.

8. At that time and place, Defendant Herrera suddenly changed lanes, crossing the white line into Plaintiff's lane crashing into Plaintiff's vehicle.

9. The injuries and losses sustained by the Plaintiff were caused by the negligence of Defendant Herrera in one or more of the following respects:

- a. in that he was operating his vehicle in violation of motor vehicle safety laws;
- b. in that he improperly and erratically changed lanes;
- c. in that he failed to keep a proper and reasonable look out for other vehicles on the highway;
- d. in that he failed to keep his vehicle under reasonable and proper control;
- e. in that he failed to take evasive action to avoid the collision.

10. As a result of Defendant Herrera's actions as alleged, Plaintiff sustained severe, painful, and permanent injuries. He sustained low back pain and muscle weakness, nerve damage, and whiplash among other injuries. Damages from his injuries are ongoing.

11. Plaintiff was required to spend money for emergency medical treatment, diagnostic imaging, hospital care, physical therapy, drugs and medicines, and will incur further such medical expenses in the future. His damages are continuing to accrue.

12. Plaintiff's ability to carry on life's activities and to enjoy them to the fullest has been impaired, and will be impaired in the future and will be permanently impaired.

13.

Count Two:

13. The allegations of Paragraphs 1 - 12 of the First Count of the Complaint are incorporated herein by reference as if fully alleged herein.

14. At all times relevant herein, Defendant Herrera, was operating his vehicle with the consent of, and as the authorized, actual, or apparent agent, and/or employee of Defendant Penske Truck Leasing Co.

15. At all times relevant herein, the Defendant, Penske Truck Leasing Co., by and through its authorized, actual or apparent agent, had a duty to exercise a reasonable degree of care and caution in the operation, management and control of said motor vehicle in such a manner as not to carelessly and negligently cause injury to persons or property rightfully and lawfully upon the public way.

16. Penske Truck Leasing Co. has a duty of care to exercise reasonable caution and prudence on the interstate.

17. In breach of his duty of care, the Defendant, Penske Truck Leasing Co., by and through its agent, the Defendant Angel Herrera, was guilty of one or more of the following negligent acts or omissions:

- a. in that he was operating his vehicle in violation of motor vehicle safety laws;
- b. in that he improperly and erratically changed lanes;
- c. in that he failed to keep a proper and reasonable look out for other vehicles on the highway;
- d. in that he failed to keep his vehicle under reasonable and proper control;
- e. in that he failed to take evasive action to avoid the collision; and

f) failed to exercise that degree of care which a reasonable and prudent person would have exercised under the same or similar circumstances.

g) Carelessly and negligently gave the possession and use of a motor vehicle into the care and custody of the Defendant, Angel Herrera, knowing that his ability and reliability to drive the vehicle was such that he was placing a careless, negligent and unsafe driver upon the streets when it knew or, in the exercise of ordinary care, should have known that he might or could cause injury to other persons and property rightfully and lawfully upon the public way; and

h) was otherwise careless and negligent.

18. As a direct and proximate result of one or more of the foregoing negligent acts or omissions of Defendant, Penske Truck Leasing Co., Plaintiff Antonio Hernandez, sustained serious and permanent injuries and as a result of suffering said injuries, Plaintiff has incurred and may continue to incur expenses for medical care, treatment and other related expenses for treatment of his injuries, all to his financial loss.

19. As a result of having sustained the injuries, Plaintiff has been caused to suffer and will continue to suffer an overall physical discomfort which imposes restrictions on his ability to enjoy all of life's activities.

20. As a further result of the negligence and carelessness of the defendant, Penske Truck Leasing Co., the plaintiff is suffering and will continue to suffer from pain, discomfort, soreness, emotional distress, post-traumatic stress, limitation of motion, and restriction of activity.

WHEREFORE, Plaintiff claims:

1. Compensatory damages in the amount of Two Hundred and Fifty Thousand Dollars (\$250,000.00);
2. Costs; and
2. Such other and further relief as may apply at law or equity.

Jury Demand

Pursuant to Rule 38 of the Federal Rules of Civil Procedure, Plaintiff requests a trial by jury.

Hereof, fail, not, but make due service and return.

Dated at Danbury, Connecticut, this 11th day of August 2022

THE PLAINTIFF
ANTONIO HERNANDEZ

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